

COUR PERMANENTE DE JUSTICE INTERNATIONALE

SÉRIE A/B

ARRÊTS, ORDONNANCES ET AVIS CONSULTATIFS

FASCICULE N° 64

ÉCOLES MINORITAIRES
EN ALBANIE

AVIS CONSULTATIF DU 6 AVRIL 1935

XXXIV^{me} SESSION

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XXXIVth SESSION

ADVISORY OPINION OF APRIL 6th, 1935

PERMANENT COURT OF INTERNATIONAL JUSTICE

SERIES A./B.

JUDGMENTS, ORDERS AND ADVISORY OPINIONS

FASCICULE No. 64

MINORITY SCHOOLS
IN ALBANIA

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MINORITY SCHOOLS
IN ALBANIA

The Albanian Declaration of October 2nd, 1921, concerning the protection of minorities.—General principles of the Minorities Treaties.—The conception of "equality in law" and "equality in law and in fact".—Obligation to allow minorities to establish and maintain private schools.

ADVISORY OPINION.

Before: Sir CECIL HURST, *President*; M. GUERRERO, *Vice-President*; Baron ROLIN-JAEQUEMYS, Count ROSTWORSKI, MM. FROMAGEOT, ALTAMIRA, ANZILOTTI, URRUTIA, SCHÜCKING, NEGULESCO, Jhr. VAN EYSINGA, *Judges*.

The Court, composed as above, gives the following opinion :

On January 18th, 1935, the Council of the League of Nations adopted the following Resolution :

“The Council of the League of Nations,

In consideration of the Albanian Declaration made before the Council on October 2nd, 1921, Article 5 of which reads as follows :

‘Albanian nationals who belong to racial, religious or linguistic minorities will enjoy the same treatment and security in law and in fact as other Albanian nationals. In particular they shall have an equal right to maintain, manage and control at their own expense or to establish in the future, charitable, religious and social institutions, schools and other educational establishments, with the right to use their own language and to exercise their religion freely therein.

Within six months from the date of the present Declaration, detailed information will be presented to the Council of the League of Nations with regard to the legal status of the religious communities, Churches, Convents, schools, voluntary establishments, and associations of racial, religious and linguistic minorities. The Albanian Government will take into consideration any advice it might receive from the League of Nations with regard to this question.’

In consideration of the provisions of Articles 206-207 of the Albanian Constitution of 1933, which read as follows :

‘The instruction and education of Albanian subjects are reserved to the State and will be given in State schools. Primary education is compulsory for all Albanian nationals and will be given free of charge. Private schools of all categories at present in operation will be closed’;

In consideration of the plea adduced before the Council by the representative of the Albanian Government that, as the abolition of private schools in Albania constitutes a general measure applicable to the majority as well as to the minority, it is in conformity with Article 5, first paragraph, of the Albanian Declaration ;

In consideration of the report submitted to the Council on January 14th, 1935, by the representative of Spain ;

Requests the Permanent Court of International Justice to express an advisory opinion on the following question :

1° whether, regard being had to the above-mentioned Declaration of October 2nd, 1921, as a whole, the Albanian Government is justified in its plea that, as the abolition of the private schools in Albania constitutes a general measure applicable to the majority as well as to the minority, it is in conformity with the letter and the spirit of the stipulations laid down in Article 5, first paragraph, of that Declaration ;

2° and if so, whether the Council of the League of Nations can, on the basis of the second paragraph of the said Article, formulate recommendations going beyond the provisions of the first paragraph.

The Secretary-General is authorized to submit this request to the Court, together with all the documents relating to the question, to afford the necessary assistance in the examination of the question, and to arrange to be represented before the Court if necessary."

In accordance with this Resolution, the Secretary-General of the League of Nations, on January 21st, 1935, transmitted to the Court a request for an advisory opinion in the following terms:

"The Secretary-General of the League of Nations, in pursuance of the Council Resolution of January 18th, 1935, and in virtue of the authorization given by the Council, has the honour to submit to the Permanent Court of International Justice an Application requesting the Court, in accordance with Article 14 of the Covenant, to give an advisory opinion to the Council on the question which is referred to the Court by the Resolution of January 18th, 1935 (see attached text).

The Secretary-General will be prepared to furnish any assistance which the Court may require in the examination of this matter, and will, if necessary, arrange to be represented before the Court."

The request was registered on January 23rd, 1935, in the Registry of the Court. To the request were appended a number of documents¹ concerning the history of the Albanian Declaration of October 2nd, 1921, the application of Article 5 of this Declaration, and the origin of the request for an opinion.

In conformity with Article 73, No. 1, paragraph 1, of the Rules, the request was communicated to Members of the League of Nations (through the Secretary-General of the League) and to States entitled to appear before the Court. Furthermore, the Registrar, by letter dated January 26th, 1935, sent to two States regarded by the President—the Court not being in session—as likely to be able to furnish information on the question referred to the Court for advisory opinion, the special and direct communication mentioned in Article 73, No. 1, paragraph 2, of the Rules. These States were Albania and Greece.

The Court being satisfied that the question submitted to it for advisory opinion did not relate to an existing dispute, the second paragraph of Article 71 of the Rules, concerning the appointment of judges in accordance with Article 31 of the Statute, was not applicable.

By an Order made on January 26th, 1935, the President of the Court—the latter not being in session—after having first ascertained by correspondence the views of Albania and Greece with regard to the procedure to be adopted, fixed March 1st, 1935, as the

¹ See list in the Annex.

date by which written statements might be filed on behalf of these two States. These statements having been duly filed by the date fixed, the Court decided on March 1st that there should be oral statements and fixed March 11th as the date for their presentation.

In the course of hearings held on March 11th and 12th, information was presented in turn by M. G. Gidel, Professor at the Faculty of Law at Paris, Counsel for the Albanian Government, by M. N. Politis, Greek Minister at Paris, Counsel for the Greek Government, and by M. Mehdi Frasheri, President of the Albanian Council of State, the Albanian Agent. The Greek Agent was M. G. Lagoudakis, Greek Minister at The Hague.

In addition to the statements of the interested Governments and the documents transmitted by the Secretariat of the League of Nations, the Court has had before it certain documents collected on its own behalf and expressly mentioned either in the Albanian Memorial or in the Greek Memorial¹.

The submission of the case being in all respects regular, these are the circumstances in which the Court is now called upon to give its opinion.

* * *

On December 15th, 1920, the Assembly of the League of Nations adopted the following recommendation:

"In the event of Albania, the Baltic and Caucasian States being admitted into the League, the Assembly requests that they should take the necessary measures to enforce the principles of the Minorities Treaties, and that they should arrange with the Council the details required to carry this object into effect."

Albania was subsequently admitted to membership of the League of Nations by a vote of the Assembly on December 17th, 1920.

The Secretary-General having communicated these decisions to the Albanian Government, the Prime Minister of Albania, in a letter dated February 9th and a telegram dated February 13th, 1921, sent him certain information as to the position of Albania with regard to minorities.

On February 23rd, 1921, the Council decided to include on the agenda of its next session, which was fixed for June of the same year, the question of the protection of minorities in Albania. Meantime, the Director of the Permanent Greek Secretariat attached to the League of Nations sent to the Secretary-General, under cover of a letter dated May 17th, 1921, a memorandum on this question, to which the Albanian President of the Council, Minister for Foreign Affairs, replied by a note dated June 21st, 1921.

¹ See list in the Annex.

In his memorandum the Greek representative raised the question whether, in order to secure equitable treatment for the racial or religious minorities living in Albanian territory, it would suffice simply to apply to Albania the general principles laid down in the Minority Treaties. In regard to this point, the Greek representative, having arrived at the conclusion that Albania ought to accept special conditions which, in the case of Albania, should supplement the provisions relating to the régime of minorities, expressed the opinion that, in the drawing up of the minority clauses to be accepted by Albania, regard should be had to certain suggestions made by him and including the following proposals:

"4. That the Albanian Government should promise to take the necessary measures for the construction and preservation of buildings used for Christian worship, for education and for philanthropy, and that no hindrance should be placed in the way of such work when it is justified by the needs of the communities and the conditions of the buildings.

5. That all Albanian subjects belonging to racial, religious or linguistic minorities should enjoy the same treatment and the same security, both in fact and in law, as other Albanian subjects; and that they should be entitled to establish, to administer and to control at their own expense, charitable, religious or scholastic institutions of all kinds, to employ their own language and to practise their own religion freely without interference by the authorities, provided that the interest of public order is safeguarded.

6. That the ecclesiastic, scholastic and juridical privileges and immunities granted by the Sultan to the non-Mohammedan nationals of Turkey by special 'berats', and confirmed by Imperial decrees, should be recognized, and that the Albanian Government should undertake to respect them in their entirety."

The reply of the Albanian Minister for Foreign Affairs, dated June 21st, 1921, contained the following in regard to these points:

"4. At the present moment there is in Albania no obstacle to the construction and upkeep of buildings devoted to the Christian faith. The Greek-speaking villages already possess schools where instruction is given in the Greek language, and these schools are subsidized by the Albanian Government.

5. Equal treatment, both in law and in fact, exists for all Albanian citizens without distinction of religion.

6. The ecclesiastic and legal prerogatives and immunities will be dealt with in a special law concerning the Orthodox autocephalous Churches, and this law will be inspired by a liberal recognition of the freedom of conscience, equal for all Catholic, autocephalous Churches and Bektachite (Téké) convents."

On June 27th, the Council decided that the question of minorities in Albania should be examined by the Secretariat together with the interested governments, in order that a report might

be prepared for the next meeting of the Council. The latter took place in August-October, 1921.

The report made by Mr. Fisher, the British representative, submitted to the Council a draft Declaration which was intended by the Rapporteur to be signed by the duly authorized representatives of Albania and formally communicated to the Council of the League. With regard to the contents of this Declaration, which was actually signed by the Albanian representative on October 2nd, 1921¹, the Rapporteur stated that it met most of the suggestions of the Greek Government—he was referring to those made notably in the memorandum of May 17th, 1921. He indicated however two important exceptions, which he explained and accounted for in detail: neither of these exceptions affected the points covered by Nos. 4 to 6 of the above-mentioned Greek memorandum.

It should be observed that, though it closely follows the corresponding clauses of the Minorities Treaties, and especially those of the first of these Treaties, the Treaty with Poland of June 28th, 1919, the Albanian Declaration differs from it in certain respects. Thus Article 1 of the Declaration, in addition to the usual provision as to the supremacy of the minority clauses, lays down that no act of State shall prevail over them "now or in the future"; again, paragraph 2 of Article 5 of the Declaration does not occur in the model Treaty, and paragraph 1 of the same Article speaks of the "equal right" of the minority to "maintain, manage and control" certain institutions or to "establish" them "in the future", whereas the model Treaty only mentions the right to "establish, manage and control".

The Council, on the proposal of the Rapporteur, adopted on the same day (Oct. 2nd, 1921) a Resolution taking note of the Declaration made by the Albanian delegation for the protection of minorities and deciding that the stipulations contained in this Declaration, so far as they concerned racial, religious or linguistic minorities, should be placed under the guarantee of the League of Nations as from the date of their ratification by the Albanian Government. Ratification took place on February 17th, 1922; the instrument of ratification was deposited at Geneva on the following 22nd of March.

After the signature of the Declaration by the Albanian representative at the Council meeting on October 2nd, 1921, the Greek representative, whilst expressing his gratitude to the Council for having considered certain of the suggestions made in the memorandum of May 17th, 1921, drew the Council's attention to the necessity, in his view, of maintaining in Albania

¹ For the text, see Annex.

the secular, religious and educational privileges which the Greek nation had enjoyed in all the territories of the former Turkish Empire.

The Court has received but little precise information as to the educational situation in Albania at the time when the Declaration of October 2nd, 1921, was made and when that Declaration became effective. Certain conclusions may however be drawn from the documents which have been produced. Thus, in the course of the observations made by him before the Council on January 14th, 1935, the Albanian representative said that "education in Albania, until 1912, had varied according to religion: the Moslems attended the Ottoman schools; the Orthodox, the Greek schools, and, in the districts adjacent to the Slavs, the Serbian or Bulgarian schools; the Catholics attended the Italian or Austrian schools....". With regard to the period subsequent to 1912—Albania became an independent State in 1913—it appears from the same observations that only in 1929 was a law concerning communities drafted under which "secular education was separated from religious teaching". Furthermore, the Agreement signed at Corfu on May 17th, 1914, by the representatives of the Albanian Government, amongst others, declared that "education was free"; and the Agreement signed at Kapishtiça on May 15th, 1920, between the Greek authorities and representatives of the Albanian Government laid down that "the Greek schools may function freely" in southern Albania. Again, in a letter dated February 9th, 1921, which is referred to in Mr. Fisher's report of October 2nd, 1921, and has been mentioned above, the President of the Albanian Council of Ministers declared that the national Government had given "complete cultural freedom" to the Greek (and Slav) elements of the population "by establishing Greek schools and paying the teaching staff"; the letter continues: "The same freedom is given to private initiative for the establishment of educational institutions using the Greek language¹."

The Court would emphasize that it only quotes the Agreements of Corfu and Kapishtiça in so far as they may serve to throw light upon the educational situation existing at the period of their conclusion and that it expresses no opinion as to the validity of these arrangements as international agreements imposing obligations on Albania.

Under Article 5, paragraph 2, of the Declaration of October 2nd, 1921, the Albanian Government had, within six months, to present to the Council "detailed information with regard to the legal status of the religious communities, churches, convents, schools, voluntary establishments and associations of

¹ Translation by the Registry.

racial, religious and linguistic minorities". In this connection, the Court would recall that in its Advisory Opinion of July 31st, 1930, concerning the Greco-Bulgarian Communities (Opinion No. 17), it had occasion to state that a community is

".... a group of persons living in a given country or locality, having a race, religion, language and traditions of their own and united by this identity of race, religion, language and traditions in a sentiment of solidarity, with a view to preserving their traditions, maintaining their form of worship, ensuring the instruction and upbringing of their children in accordance with the spirit and traditions of their race and rendering mutual assistance to each other."

By a telegram dated April 2nd, 1922, the Albanian Government, however, announced that it was materially impossible for it to present its report within the time fixed, and that it would do so as soon as possible. In accordance with this promise, the Albanian Minister for Foreign Affairs sent certain information to the Secretary-General on this subject in a letter dated July 7th, 1922. This letter stated that there were in southern Albania a number of Greek minority schools, all maintained solely by the State out of the funds of the Ministry of Education; further, according to the same letter, Albanian communities, including the Orthodox community, had "full rights of establishing schools of various grades teaching in the language of the people over whom their religious heads have rights of jurisdiction".

Meantime, at a meeting of the Council on May 12th, 1922, the Albanian representative had announced that two classes of laws would be passed to deal with the question of minorities in Albania: the general principles would form an integral part of the constitutional law which was in process of preparation, and the development of these principles and the provisions regarding religious communities would be embodied in another law, which was also in course of preparation.

On September 1st, 1922, the Council noted the information furnished by the Albanian Government in its letter of July 7th regarding the situation of minorities in Albania; at the same time, it instructed the Secretary-General to collect and submit to the Council in due course further information concerning the legislative measures which, according to the statement made by the Albanian representative on May 12th, 1922, were to be taken, particularly with regard to the legal status of minority schools.

The first Albanian Constitution—apart from the organic Statute of August 10th, 1914, and a "Provisional Constitution" which would seem to have been in force in 1923, but the terms

of which have not been produced to the Court—was only adopted on March 7th, 1925.

On June 5th, 1923, however, a law was promulgated "concerning the legal status of religious communities", the text of which was communicated to the Council on August 15th of the same year. This law does not deal with educational questions; its bearing upon the organization of education in Albania appears indirectly from the letter of the Albanian Minister for Foreign Affairs of July 7th, 1922, to which reference has been made above. On September 17th, 1923, the Council decided to note "the information furnished to date by the Albanian Government in conformity with Article 5, paragraph 2, of the Albanian Declaration of October 2nd, 1921", and to instruct the Secretary-General to examine this information "in co-operation with the Albanian representative and to submit [his] conclusions to the Rapporteur". The results of this examination were set out in a memorandum which the Secretariat communicated to the Council, for its information, on May 14th, 1924.

This memorandum stated that the Minorities Section of the Secretariat had undertaken, together with the Albanian representative, a detailed examination of various questions including the question of schools. In regard to this point, the Albanian representative appears to have informed the Secretariat that a law was being drafted by which no private schools would be allowed in Albania; this law, being general in character and applying to the majority as well as to the minority, would, in his view, be in conformity with Article 5, paragraph 1, of the Declaration of October 2nd, 1921. According to a letter dated November 3rd, 1934, addressed by the Albanian Minister for Foreign Affairs to the Secretary-General, this view had been "expressed in statements made in August, 1923, to the permanent Albanian Delegate by M. Colban, the Director of the Minorities Section¹". No document confirming this allegation has, however, been produced to the Court.

The Secretariat's memorandum does not seem to have led to any subsequent decision on the part of the Council. In his "Report to the Sixth Assembly of the League of Nations on the Work of the Council", etc. (Sept., 1925), the Secretary-General of the League writes that the "memorandum prepared by the Secretariat was communicated to Members of the Council.... The Council has not yet decided to examine this document"; and in his report to the Council on January 14th, 1935, the Spanish representative said: "since then [May 1924] the Council has not dealt with the matter". In the same report it is explained that, in view of the information supplied by the Albanian Government in 1922 and 1923, the Council

¹ Translation by the Registry.

did not feel that the situation called for any recommendations.

The intentions mentioned by the Albanian representative in his conversations with the Secretariat in 1923 did not take shape for some time. Thus, on December 1st, 1928, a new Constitution was promulgated; Articles 206 and 207 were as follows:

“Article 206.—Elementary education is compulsory for all Albanian subjects and shall be given free of charge in the State schools.

Article 207.—Provided they conform with the laws, principles and curricula approved by the State for its own schools, and subject to the effective control of the Government, Albanian subjects may found private schools.

Provided they comply with the laws, foreigners may be authorized to found technical and agricultural schools only, with theoretical and practical curricula.

Similarly, religious schools may be established by Albanian religious communities with the permission of the competent Minister and in conformity with the laws; the number of the religious schools of any community and of the pupils of such schools shall be fixed by the competent Minister after consultation with the Council of Ministers.”

In the following year, however, the law regarding the secularization of education to which—as has already been mentioned—the Albanian representative alluded in his observations at the Council meeting on January 14th, 1935, was prepared; but this law, according to the statements of this representative, remained a dead letter. On January 9th, 1930, a new law was adopted “concerning religious communities”, replacing that of 1923. Under Article 24 of this law, which came into force on February 1st, 1931, “religious communities and their sects may open religious schools and seminaries for the education of their ecclesiastical personnel, so long as they conform to the laws of the State and to the statutes and rules of the community as approved by the State”. On November 14th, 1930, a circular of the Minister of Public Education was published, abolishing religious instruction in schools. Finally, in 1933, the Albanian National Assembly modified Articles 206 and 207 of the Constitution of 1928, and those Articles now run as follows:

“The instruction and education of Albanian subjects are reserved to the State and will be given in State schools. Primary education is compulsory for all Albanian nationals and will be given free of charge. Private schools of all categories at present in operation will be closed¹.”

¹ This translation is taken from the Council Resolution of January 18th, 1935. The following translation appears in the report adopted by the Council on January 14th, 1935:

“The teaching and education of Albanian subjects are reserved to the

Thus the abolition of private schools in Albania was completed.

Following upon these measures, a number of petitions which have not been produced to the Court seem to have been addressed to the League of Nations, relating mainly to the question of the abolition of private schools in Albania. The Committee of the Council which had been instructed to examine these petitions requested the Secretary-General in a letter dated November 21st, 1934, to place the question of the scope of Article 5 of the Albanian Declaration of October 2nd, 1921, in regard to certain points, upon the Council agenda at the earliest possible moment. The letter contains the following passage on the subject:

"This Article contains a set of interdependent provisions. In our opinion the last, which refers to advice to be given by the League of Nations, is a most important point to bear in mind in judging the present situation. As it appears that such advice has not yet been given, we think it would be well to draw the Council's attention to this fact, so that it may decide whether it desires to take action under these clauses."

The Committee of the Council, before taking this step, had been able to see, *inter alia*, the observations sent by the Albanian Government to the Secretary-General on July 23rd and November 3rd, 1934, the text of which has been communicated to the Court. It is stated in the report adopted on January 14th, 1935, that a comparison of the legislation in force in Albania with that of 1923 led three Members of the Council to the conclusion that the situation had changed considerably, so that they thought it desirable to draw the Council's attention to the fact that the recommendations contemplated in Article 5, paragraph 2, of the Albanian Declaration had not yet been formulated.

After discussing the question on the basis of the reports presented by the Spanish representative at the meetings on January 14th and 18th, 1935, the Council decided, by a Resolution adopted on the latter date and the terms of which are reproduced above, to ask the Court for an advisory opinion on the questions formulated therein.

* * *

The request submitted to the Court by the Council of the League of Nations first asks "whether, regard being had to

State, which shall be responsible for giving such teaching and education in its schools. Elementary education is compulsory for all Albanian nationals and shall be given free of charge. Private schools of all categories at present in existence shall be closed."

the above-mentioned Declaration of October 2nd, 1921, as a whole, the Albanian Government is justified in its plea that, as the abolition of the private schools in Albania constitutes a general measure applicable to the majority as well as to the minority, it is in conformity with the letter and the spirit of the stipulations laid down in Article 5, first paragraph, of that Declaration”.

The contention of the Albanian Government is that the above-mentioned clause imposed no other obligation upon it, in educational matters, than to grant to its nationals belonging to racial, religious, or linguistic minorities a right equal to that possessed by other Albanian nationals. Once the latter have ceased to be entitled to have private schools, the former cannot claim to have them either. This conclusion, which is alleged to follow quite naturally from the wording of paragraph 1 of Article 5, would, it is contended, be in complete conformity with the meaning and spirit of the treaties for the protection of minorities, an essential characteristic of which is the full and complete equality of all nationals of the State, whether belonging to the majority or to the minority. On the other hand, it is argued, any interpretation which would compel Albania to respect the private minority schools would create a privilege in favour of the minority and run counter to the essential idea of the law governing minorities. Moreover, as the minority régime is an extraordinary régime, constituting a derogation from the ordinary law, the text in question should, in case of doubt, be construed in the manner most favourable to the sovereignty of the Albanian State.

According to the explanations furnished to the Court by the Greek Government, the fundamental idea of Article 5 of the Declaration was on the contrary to guarantee freedom of education to the minorities by granting them the right to retain their existing schools and to establish others, if they desired; equality of treatment is, in the Greek Governments' opinion, merely an adjunct to that right, and cannot impede the purpose in view, which is to ensure full and effectual liberty in matters of education. Moreover, the application of the same régime to a majority as to a minority, whose needs are quite different, would only create an apparent equality, whereas the Albanian Declaration, consistently with ordinary minority law, was designed to ensure a genuine and effective equality, not merely a formal equality.

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The Declaration of October 2nd, 1921, belongs to the numerous category of international acts designed for the protection of minorities.

The Greek Government recognizes this fact, but it contends that the Declaration must be construed in the light of the historical and social conditions of Albania, and with regard, in particular, to the fact that the rights of the minorities had been long in existence in the Near East, where they were known by the name of community rights.

In accordance with this line of argument, Counsel for the above-mentioned Government gave prominence, in the course of his oral statement, to the points of difference which exist between the Albanian Declaration and the other treaties and declarations of the same kind which have been mentioned above. Thus, he drew attention to the insertion in the second sentence of paragraph 1 of Article 5 of the words "to maintain", which do not appear in the other treaties and declarations, and which, in his submission, were intended to ensure the continuation of the religious and educational autonomy that was enjoyed by the Greek communities in Albania.

It is only natural to assume that the conditions which existed in Albania after the war and which were themselves the consequence of previous historic events, were within the knowledge of the Assembly of the League of Nations when it included Albania in its recommendation on December 15th, 1920. It is moreover certain that the Declaration of October 2nd, 1921, was drawn up after a prolonged examination, during which the States concerned had an opportunity of stating their points of view and supplying all relevant information.

There appears therefore no reason to doubt that certain special aspects of the situation of the minorities in Albania—for instance the existence of religious communities mentioned in paragraph 2 of Article 5 of the Albanian Declaration—were taken into consideration by the Council, and that they accounted for certain differences between the Albanian Declaration and the other treaties and declarations concerned with the protection of minorities.

These considerations cannot however prevail against the fact that what the Council of the League of Nations asked Albania to accept, and what Albania did accept, was a régime of minority protection substantially the same as that which had been already agreed upon with other States in which there were no "communities".

The differences between the text of the Albanian Declaration and the other texts of the same kind do not affect the essential features of that Act. On the other hand, it is a fact that the Council did not insert in the Declaration certain proposals of the Greek Government which departed "from the general principles adopted in all the treaties for the protection of minorities". It follows that any rights and privileges which the Greek communities in Albania may have enjoyed are only recognized

in the Declaration of October 2nd, 1921, in so far as they are covered by the analogous régime of the protection of minorities.

As the Declaration of October 2nd, 1921, was designed to apply to Albania the general principles of the treaties for the protection of minorities, this is the point of view which, in the Court's opinion, must be adopted in construing paragraph 1 of Article 5 of the said Declaration.

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The idea underlying the treaties for the protection of minorities is to secure for certain elements incorporated in a State, the population of which differs from them in race, language or religion, the possibility of living peaceably alongside that population and co-operating amicably with it, while at the same time preserving the characteristics which distinguish them from the majority, and satisfying the ensuing special needs.

In order to attain this object, two things were regarded as particularly necessary, and have formed the subject of provisions in these treaties.

The first is to ensure that nationals belonging to racial, religious or linguistic minorities shall be placed in every respect on a footing of perfect equality with the other nationals of the State.

The second is to ensure for the minority elements suitable means for the preservation of their racial peculiarities, their traditions and their national characteristics.

These two requirements are indeed closely interlocked, for there would be no true equality between a majority and a minority if the latter were deprived of its own institutions, and were consequently compelled to renounce that which constitutes the very essence of its being as a minority.

In common with the other treaties for the protection of minorities, and in particular with the Polish Treaty of June 28th, 1919, the text of which it follows, so far as concerns the question before the Court, very closely and almost literally, the Declaration of October 2nd, 1921, begins by laying down that no person shall be placed, in his relations with the Albanian authorities, in a position of inferiority by reason of his language, race or religion. Thus, Article 2 stipulates for all inhabitants of Albania a certain minimum of rights, which are to be granted to them "without distinction of birth, nationality, language, race or religion"; and Article 3 guarantees that Albanian nationality will not be refused to any person fulfilling the conditions mentioned in that Article.

Article 4 only relates to Albanian nationals and stipulates on their behalf equality before the law and the enjoyment of

the same civil and political rights, without distinction as to race, language or religion. It also defines certain of these rights, with the same object of preventing differences of race, language or religion from becoming a ground of inferiority in law or an obstacle in fact to the exercise of the rights in question.

In all these cases, the Declaration provides for a régime of legal equality for all persons mentioned in the clause; in fact no standard of comparison was indicated, and none was necessary, for at the same time that it provides for equality of treatment the Declaration specifies the rights which are to be enjoyed equally by all.

After having regulated, as indicated above, the legal position of certain persons who, whether or not possessing Albanian nationality, come under Albanian sovereignty, and the legal position of Albanian nationals in general, the Declaration goes on to make special provision for Albanian nationals belonging to minorities of race, language or religion. That is the subject dealt with in paragraph 1 of Article 5, the provision which is expressly referred to in the first question put to the Court, and with which the Court must now occupy itself more particularly.

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It has already been remarked that paragraph 1 of Article 5 consists of two sentences, the second of which is linked to the first by the words *in particular*: for a right apprehension of the second part, it is therefore first necessary to determine the meaning and the scope of the first sentence.

This sentence is worded as follows:

“Albanian nationals who belong to racial, linguistic or religious minorities, will enjoy the same treatment and security in law and in fact as other Albanian nationals.”

The question that arises is what is meant by the *same treatment and security in law and in fact*.

It must be noted to begin with that the equality of all Albanian nationals before the law has already been stipulated in the widest terms in Article 4. As it is difficult to admit that Article 5 set out to repeat in different words what had already been said in Article 4, one is led to the conclusion that “the same treatment and security in law and in fact” which is provided for in Article 5 is not the same notion as the equality before the law which is provided for in Article 4.

Moreover, as Article 4 stipulates equality before the law for all Albanian nationals, while Article 5 stipulates the “same treatment and security in law and in fact” for Albanian nationals

belonging to racial, religious or linguistic minorities as compared with other Albanian nationals, it is natural to conclude that the "same treatment and security in law and in fact" implies a notion of equality which is peculiar to the relations between the majority and minorities.

This special conception finds expression in the idea of an equality in fact which in Article 5 supplements equality in law. All Albanian nationals enjoy the equality in law stipulated in Article 4; on the other hand, the equality between members of the majority and of the minority must, according to the terms of Article 5, be an equality in law and in fact.

It is perhaps not easy to define the distinction between the notions of equality in fact and equality in law; nevertheless, it may be said that the former notion excludes the idea of a merely formal equality; that is indeed what the Court laid down in its Advisory Opinion of September 10th, 1923, concerning the case of the German settlers in Poland (Opinion No. 6), in which it said that:

"There must be equality in fact as well as ostensible legal equality in the sense of the absence of discrimination in the words of the law."

Equality in law precludes discrimination of any kind; whereas equality in fact may involve the necessity of different treatment in order to attain a result which establishes an equilibrium between different situations.

It is easy to imagine cases in which equality of treatment of the majority and of the minority, whose situation and requirements are different, would result in inequality in fact; treatment of this description would run counter to the first sentence of paragraph 1 of Article 5. The equality between members of the majority and of the minority must be an effective, genuine equality; that is the meaning of this provision.

The second sentence of this paragraph provides as follows:

"In particular they shall have an equal right to maintain, manage and control at their own expense or to establish in the future, charitable, religious and social institutions, schools and other educational establishments, with the right to use their own language and to exercise their religion freely therein."

This sentence of the paragraph being linked to the first by the words "in particular", it is natural to conclude that it envisages a particularly important illustration of the application of the principle of identical treatment in law and in fact that is stipulated in the first sentence of the paragraph. For the institutions mentioned in the second sentence are indispensable to enable the minority to enjoy the same treatment as the

majority, not only in law but also in fact. The abolition of these institutions, which alone can satisfy the special requirements of the minority groups, and their replacement by government institutions, would destroy this equality of treatment, for its effect would be to deprive the minority of the institutions appropriate to its needs, whereas the majority would continue to have them supplied in the institutions created by the State.

Far from creating a privilege in favour of the minority, as the Albanian Government avers, this stipulation ensures that the majority shall not be given a privileged situation as compared with the minority.

It may further be observed that, even disregarding the link between the two parts of paragraph 1 of Article 5, it seems difficult to maintain that the adjective "equal", which qualifies the word "right", has the effect of empowering the State to abolish the right, and thus to render the clause in question illusory; for, if so, the stipulation which confers so important a right on the members of the minority would not only add nothing to what has already been provided in Article 4, but it would become a weapon by which the State could deprive the minority régime of a great part of its practical value. It should be observed that in its Advisory Opinion of September 15th, 1923, concerning the question of the acquisition of Polish nationality (Opinion No. 7), the Court referred to the opinion which it had already expressed in Advisory Opinion No. 6 to the effect that "an interpretation which would deprive the Minorities Treaty of a great part of its value is inadmissible".

If the object and effect of the second sentence of the paragraph is to ensure that Albanian nationals belonging to racial, linguistic or religious minorities shall in fact enjoy the same treatment as other Albanian nationals, it is clear that the expression "equal right" must be construed on the assumption that the right stipulated must always be accorded to the members of the minority. The idea embodied in the expression "equal right" is that the right thus conferred on the members of the minority cannot in any case be inferior to the corresponding right of other Albanian nationals. In other words, the members of the minority must always enjoy the right stipulated in the Declaration, and, in addition, any more extensive rights which the State may accord to other nationals. The right provided by the Declaration is in fact the minimum necessary to guarantee effective and genuine equality as between the majority and the minority; but if the members of the majority should be granted a right more extensive than that which is provided, the principle of equality of treatment would come into play and would require that the more extensive right should also be granted to the members of the minority.

The construction which the Court places on paragraph 1 of Article 5 is confirmed by the history of this provision.

No. 5 of the proposals which the Greek Government submitted to the Council of the League of Nations on May 17th, 1921, and which have in part been reproduced above, was worded as follows:

"That all Albanian subjects belonging to racial, religious or linguistic minorities should enjoy the same treatment and the same security, both in fact and in law, as other Albanian subjects; and that they should be entitled to establish, to administer and to control at their own expense, charitable, religious or scholastic institutions of all kinds, to employ their own language and to practise their own religion freely without interference by the authorities, provided that the interest of public order is safeguarded."

It is clear that the right of minorities to have their own charitable, religious or educational institutions was envisaged in that proposal as a right which they were to enjoy in any case, irrespective of the legal situation of other Albanian nationals.

This proposal was not contested by the Albanian Government in its reply of June 21st of the same year, the relevant part of which has been quoted above; and the report submitted to the Council by the British representative on October 2nd observed that the Declaration met most of the Greek Government's suggestions. The points mentioned in the report in which it failed to do so, in no case affect the subject of the proposal in question. That being so, the Court is unable to attach any importance to the fact that the word "equal" does not appear in the fifth Greek proposal, whereas it is used in Article 5 of the Albanian Declaration which, in this respect, follows the exact wording of the minorities treaties.

On the other hand, it was probably with the object of meeting, in so far as was consistent with the general minority régime, the desire expressed by the Greek Government in its sixth proposal that the words "to maintain", which do not appear in Article 8 of the Treaty with Poland of June 28th, 1919, were inserted in paragraph 1 of Article 5.

Another argument in support of the interpretation placed by the Court on paragraph 1 of Article 5 is supplied by Article 6 of the Declaration, which is worded as follows:

"Provision will be made in the public educational system in towns and districts in which are resident a considerable proportion of Albanian nationals whose mother-tongue is not the official language, for adequate facilities for ensuring that in the primary schools instruction shall be given to the children of such nationals through the medium of their own language, it being understood that this provision does not prevent teaching of the official language being made obligatory in the said schools.

In towns and districts where there is a considerable proportion of Albanian nationals belonging to racial, religious or linguistic minorities, these minorities will be assured an equitable share in the enjoyment and application of sums which may be provided out of public funds under the State, municipal or other budgets, for educational, religious or charitable purposes."

Beginning as it does with the words "in the public educational system", which thus follow directly after Article 5, Article 6 appears to assume that State education, so far as it is intended for members of the minorities, will be something additional to private education, and is not meant to take the place of private education. For that reason, the Court cannot regard as relevant the information supplied to it by the Albanian Government concerning the present conditions of State education in Albania and the reforms already introduced, or about to be introduced, in order to meet the needs of the minority in the State schools.

*

The Court, having thus established that paragraph 1 of Article 5 of the Declaration, both according to its letter and its spirit, confers on Albanian nationals of racial, religious or linguistic minorities the right that is stipulated in the second sentence of that paragraph, finds it unnecessary to examine the subsidiary argument adduced by the Albanian Government to the effect that the text in question should in case of doubt be interpreted in the sense that is most favourable to the sovereignty of the State.

*

The Court therefore finds that paragraph 1 of Article 5 of the Declaration of October 2nd, 1921, ensures for Albanian nationals belonging to racial, linguistic or religious minorities the right to maintain, manage and control at their own expense or to establish in the future charitable, religious and social institutions, schools and other educational establishments, with the right to use their own language and to exercise their religion freely therein.

*

The second question in regard to which the opinion of the Court is solicited is worded as follows:

"2° and if so [*i. e. if the Albanian plea on the first question is deemed to be in conformity with the letter and spirit of the stipulations in Article 5, first paragraph, of the Declaration of October 2nd, 1921*], whether the Council of the League of Nations can, on the basis of the second paragraph of the said Article,

formulate recommendations going beyond the provisions of the first paragraph”.

As the Court has found that the reply to the first question put to it is not in the affirmative, the second question does not arise.

FOR THESE REASONS,

The Court is of opinion,

by eight votes to three,

that the plea of the Albanian Government that, as the abolition of private schools in Albania constitutes a general measure applicable to the majority as well as to the minority, it is in conformity with the letter and spirit of the stipulations laid down in Article 5, first paragraph, of the Declaration of October 2nd, 1921, is not well founded.

Done in English and French, the French text being authoritative, at the Peace Palace, The Hague, this sixth day of April, one thousand nine hundred and thirty-five, in two copies, one of which is to be deposited in the archives of the Court and the other to be forwarded to the Council of the League of Nations.

(Signed) CECIL J. B. HURST,
President.

(Signed) Å. HAMMARSKJÖLD,
Registrar.

Sir CECIL HURST, President of the Court, Count ROSTWOROWSKI and M. NEGULESCO, Judges, declare that they are unable to concur in the Opinion given by the Court and, availing themselves of the right conferred on them by Article 71, paragraph 3, of the Rules, have appended thereto the dissenting opinion which follows.

(Initialled) C. J. B. H.

(Initialled) Å. H.